

June 26, 2006



U.S. Department  
of Transportation

400 Seventh Street, S.W.  
Washington, D.C. 20590

**Pipeline and Hazardous  
Materials Safety Administration**

DOT-SP 11172  
(SIXTH REVISION)

|                               |
|-------------------------------|
| EXPIRATION DATE: May 31, 2010 |
|-------------------------------|

(FOR RENEWAL, SEE 49 CFR § 107.109.)

1. GRANTEE: Department of Defense (DOD)  
Ft. Eustis, VA
2. PURPOSE AND LIMITATIONS:
  - a. This special permit authorizes the use of a non-DOT specification container for the transportation in commerce of certain non-flammable gases. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
  - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
  - c. Party status will not be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.301(a)(1), 173.302a(a), and 175.3 in that the use of a non-DOT specification cylinder is not authorized except as prescribed herein.
5. BASIS: This special permit is based on DOD's application dated June 23, 2006, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

| Proper Shipping Name/<br>Hazardous Materials Description | Hazard<br>Class/<br>Division | Identi-<br>fication<br>Number | Packing<br>Group |
|----------------------------------------------------------|------------------------------|-------------------------------|------------------|
| Air, compressed                                          | 2.2                          | UN1002                        | N/A              |
| Nitrogen, compressed                                     | 2.2                          | UN1066                        | N/A              |
| Oxygen, compressed                                       | 2.2                          | UN1072                        | N/A              |

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packaging is a non-DOT specification, steel, spherical container which conforms with Lockheed's drawing numbers 2650252, 2650438, and 5558824 on file with the Office of Special Permits and Approvals (OHMSPA), and with DOT Specification 3A (§ 178.36) except as follows:

178.36(a) Type, size, and service pressure

(1) Welded sphere, with maximum water capacity of 500 cubic inches and maximum service pressure of 3,000 psig.

(2) Not applicable.

178.36(b) Steel

AISA 4130 sheet per MIL-S-18729.

178.36(d) Manufacture

Manufactured by forming sheet stock into hemispherical shapes which are joined together by a continuous circumferential weld, and with bosses welded onto either, or both, ends.

178.36(e) Welding

(1) Welding as performed in §178.36(d) of this special permit is authorized. Welding must be full-penetration with 100% radiographic inspection.

178.36(f) Wall thickness

Minimum wall thickness is 0.210 inches.

Wall stress calculations must be made per the special permit application on file with OHMSPA.

178.36(j) Flattening test

Test sample must consist of a ring cut at 45 degrees to the circumferential weld; all other requirements apply.

178.36(l) Acceptable results for physical and flattening tests--results as follows:

(1) Minimum tensile strength must be not less than 160,000 psi, and

(2) Flattening must be to 10 times the wall thickness, without cracking.

178.36(n) Rejected cylinders

Repair by welding is authorized, followed by a 100% radiographic inspection. Reheat treatment is authorized, subsequent thereto, acceptable spheres must pass all prescribed tests.

b. TESTING - Spheres authorized by this special permit must be reinspected and retested as specified in §§ 180.205 and 180.209 for a DOT-3A cylinder. The retest interval must be every three years.

c. MARKING - Spheres must be marked with "DOT-SP 11172" in lieu of "DOT-3A", followed by the service pressure.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

- b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
  - c. New construction is not authorized.
  - d. Packagings permanently marked 'DOT-E 11172', prior to October 1, 2007 may continue to be used under this special permit for the remaining service life of the packaging or until the special permit is no longer valid. Packagings marked on or after October 1, 2007 must be marked 'DOT-SP 11172'.
  - e. Shipping papers displaying 'DOT-E 11172' may continue to be used until October 1, 2007, provided the special permit remains valid.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, cargo aircraft only, and passenger-carrying aircraft.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each aircraft used to transport packages covered by this special permit. The shipper must furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
  - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
  - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Robert A. McGuire  
Associate Administrator  
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety

**June 26, 2006**

Administration, Department of Transportation, Washington, D.C.  
20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at [http://hazmat.dot.gov/special\\_permit](http://hazmat.dot.gov/special_permit) Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: KFW/sln